

25NNCV02550 25NNCV02550

County: los-angeles

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Hearing date: 2026-08-28

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Case Number: 25NNCV02550 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL INITIAL RESPOSES; REQUEST FOR SANCTIONS AS TO DEFENDANT BEECAN HEALTH

Hearing Date: 8/28/26

CASE NO.: 25NNCV02550

CASE NAME: Rose Gloria by and through her Successor-in-Interest,
Yolanda Gonzalez, et al. vs Royal Palms Post Acute, LLC, et al.

Moving Party: Plaintiff, Rose Gloria, by and through her
Successor-in-Interest, Yolanda Gonzalez

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse action. Decedent Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez (Plaintiff), and her children, Yolanda Gonzalez, Jose Gonzalez, Lisa White, Edward Gloria, Cynthia Castro, and Michael Gloria have brought this action against defendants Beecan Health, LLC (Defendant Beecan), Royal Palms

Post Acute, LLC, Palms Licensee 3, LLC, and Steeve Henry, the owners and operators of the skilled nursing facility, Royal Palms Post Acute (Facility), where Ms. Gloria was a resident patient. On April 14, 2025, Plaintiff filed a Complaint against all defendants alleging Wrongful Death.

On July 1, 2026, Plaintiff filed the instant motions to compel initial responses to Form Interrogatories (Res ID: 0385), Special Interrogatories (Res ID: 3152), and Requests for Production of Documents (RPDs) (Res ID: 8155) served on Defendant Beecan.

No oppositions have been filed as of August 21, 2026.

LEGAL

STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required

before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

DISCUSSION

Motion to Compel Initial Responses

Plaintiff

contends that Defendant Beecan failed to timely respond to Form Interrogatories, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 4.)

Here, Plaintiff's

counsel served Defendant Beecan with the Form Interrogatories, Special Interrogatories, and RPDs by electronic service on March 13, 2026. (Mot. Compel Form Interrog., Horii Decl., ¶ 2; Mot. Compel Special Interrog., Horii Decl., ¶ 2; Mot., Compel RPDs, Horii Decl., ¶ 2.) Plaintiff contends that initial responses were due April 14, 2026. (Horii Decl., ¶ 3.) On April 15, Plaintiff's counsel provided Defendant Beecan with a two-week extension via email, but Defendant Beecan again failed to respond. (Horii Decl., ¶ 4.) On April 22, 2026, Plaintiff's counsel left a voicemail and on April 23, 2026, spoke with Defendant Beecan's counsel via telephone and gave a subsequent extension making responses due May 15, 2026. (Horii Decl., ¶¶ 5-6.) Defendant Beecan again failed to respond. (Ibid.) As of July 1, 2026, Plaintiff declares that Defendant Beecan has not provided verified responses. (Horii Decl., ¶ 7.)

Since Defendant Beecan

was properly served and failed to respond to discovery requests by the

statutory deadline, Plaintiff is entitled to an order compelling Defendant Beecan to provide responses without objections to Form Interrogatories, Special Interrogatories, and RPDs.

Accordingly, the motion to compel initial responses is GRANTED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant Beecan's failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff's Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff's counsel requests sanctions in the amount of \$633.54 for each motion. (Mot., p. 6.) Plaintiff has filed a total of 12 motions to compel initial responses from four total defendants, six of which are being heard on August 28, 2026, and the remaining 6 having been heard on August 21, 2026. For all 12 motions, Plaintiff seeks attorney's fees of \$6,882.50 plus \$720 (\$60.00 x 12) in filing costs, totaling \$7,602.50. (Horii Decl., ¶¶ 10-11.) The \$6,882.50 in fees reflects 12.0 hours spent drafting the motions, 3.0 hours anticipated drafting replies, and 1 hour spent attending the hearings at a rate of \$395.00 per hour; plus, 0.75 hours

spent by Partner Kathryn Cassano, Esq. reviewing the motions at a rate of \$750.00 per hour. (Horii Decl., ¶ 11.) Plaintiff divides the total fees and costs requested, \$7,602.00, by 12 motions to reflect \$633.54 per motion. (Ibid.)

The Court, in its discretion, will only award \$575 to reflect one hour at a rate of \$395 for the 3 motions filed against Defendant Beecan plus \$180 filing fees for each motion (\$60 x 3). All motions are substantially similar and straight forward.

Accordingly, the Court GRANTS Plaintiff's request for imposition of sanctions against Defendants Beecan in the amount of \$575.

CONCLUSION AND ORDER

Plaintiff Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's motion to deem RFAs admitted is GRANTED.

Plaintiff Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's request for sanctions is GRANTED in the amount of \$575, to be paid by Defendant Beecan to Plaintiff 30 days from this ruling.

MOVING PARTY to submit a proposed order consistent with this ruling within 5 days and provide notice of this order.

MOTION
TO COMPEL INITIAL RESPONSES; REQUEST FOR SANCTIONS AS TO DEFENDANT STEEVE HENRY

Hearing
Date: 8/28/26

CASE
NO.: 25NNCV02550

CASE

NAME: Rose Gloria by and through her Successor-in-Interest, Yolanda Gonzalez, et al. vs Royal Palms Post Acute, LLC, et al.

Moving

Party: Plaintiff, Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez

Responding

Party: Unopposed

Notice:

Sufficient

Ruling:

GRANT.

BACKGROUND

This is an elder

abuse action. Decedent Rose Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez (Plaintiff), and her children, Yolanda Gonzalez, Jose Gonzalez, Lisa White, Edward Gloria, Cynthia Castro, and Michael Gloria have brought this action against defendants Steeve Henry (Defendant Steeve), Beecan Health, LLC, Royal Palms Post Acute, LLC, and Palms Licensee 3, LLC, the owners and operators of the skilled nursing facility, Royal Palms Post Acute (Facility), where Ms. Gloria was a resident patient. On April 14, 2025, Plaintiff filed a Complaint against all defendants alleging Wrongful Death.

On July 1, 2026,

Plaintiff filed the instant motions to compel initial responses to Form Interrogatories (Res ID: 9436), Special Interrogatories (Res ID: 3332), and Requests for Production of Documents (RPDs) (Res ID: 7167) served on Defendant Steeve.

No oppositions

have been filed as of August 21, 2026.

LEGAL STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to

whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; *Sinaiko*, supra, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

DISCUSSION

Motion to Compel Initial Responses

Plaintiff

contends that Defendant Steeve failed to timely respond to Form Interrogatories, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 4.)

Here, Plaintiff's

counsel served Defendant Steeve with the Form Interrogatories, Special Interrogatories, and RPDs by electronic service on March 13, 2026. (Mot. Compel Form Interrog., Horii Decl., ¶ 2; Mot. Compel Special Interrog., Horii Decl., ¶ 2; Mot., Compel RPDs, Horii Decl., ¶ 2.) Plaintiff contends that initial responses were due April 14, 2026. (Horii Decl., ¶ 3.) On April 15, Plaintiff's counsel provided Defendant Steeve with a two-week extension via email, but Defendant Steeve again failed to

respond. (Horii Decl., ¶ 4.) On April 22, 2026, Plaintiff's counsel left a voicemail and on April 23, 2026, spoke with Defendant Steeve's counsel via telephone and gave a subsequent extension making responses due May 15, 2026. (Horii Decl., ¶¶ 5-6.) Defendant Steeve again failed to respond. (Ibid.) As of July 1, 2026, Plaintiff declares that Defendant Steeve has not provided verified responses. (Horii Decl., ¶ 7.)

Since Defendant Steeve was properly served and failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order compelling Defendant Steeve to provide responses without objections to Form Interrogatories, Special Interrogatories, and RPDs.

Accordingly, the motion to compel initial responses is GRANTED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Defendant Steeve's failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff's Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff's

counsel requests sanctions in the amount of \$633.54 for each motion. (Mot., p. 6.)

Plaintiff has filed a total of 12 motions to compel initial responses from four total defendants, six of which are being heard on August 28, 2026, and the remaining 6 having been heard on August 21, 2026. For all 12 motions, Plaintiff seeks attorney's fees of \$6,882.50 plus \$720 (\$60.00 x 12) in filing costs, totaling \$7,602.50. (Horii Decl., ¶¶ 10-11.) The \$6,882.50 in fees reflects 12.0 hours spent drafting the motions, 3.0 hours anticipated drafting replies, and 1 hour spent attending the hearings at a rate of \$395.00 per hour; plus, 0.75 hours spent by Partner Kathryn Cassano, Esq. reviewing the motions at a rate of \$750.00 per hour. (Horii Decl., ¶ 11.) Plaintiff divides the total fees and costs requested, \$7,602.00, by 12 motions to reflect \$633.54 per motion. (Ibid.)

The Court, in

its discretion, will only award \$575 to reflect one hour at a rate of \$395 for the 3 motions filed against Defendant Steeve plus \$180 filing fees for each motion (\$60 x 3). All motions are substantially similar and straight forward.

Accordingly, the

Court GRANTS Plaintiff's request for imposition of sanctions against Defendants Steeve in the amount of \$575.

CONCLUSION AND ORDER

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's motion to deem RFAs admitted is GRANTED.

Plaintiff Rose

Gloria, by and through her Successor-in-Interest, Yolanda Gonzalez's request for sanctions is GRANTED in the amount of \$575, to be paid by Defendant Steeve to Plaintiff 30 days from this ruling.

MOVING PARTY to submit

a proposed order consistent with this ruling within 5 days and provide notice of this order.